

## **Tentative Rulings for Department 502**

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**Tentative Ruling**

Re: ***Alyssa Herrera v. ASFC LLC***  
Superior Court Case No. 25CECG02335

Hearing Date: May 28, 2026 (Dept. 502)

Motion: By Defendants to Compel Arbitration

**Tentative Ruling:**

To continue the motion to July 8, 2026 at 3:30 pm in Department 501 to allow further briefing as set forth below.

Defendants, ASFC, LLC and Aspen Skilled Healthcare, Inc., are granted leave to file and serve briefing and admissible evidence which address each issue identified by the court below. The briefs shall not exceed 15 total pages (exclusive of tables of contents and authorities) and shall be due on or before the close of business June 12, 2026. Plaintiff, Alyssa Herrera, is permitted to file and serve a responsive brief of no more than 15 pages, no later than the close of business on June 26, 2026.

**Explanation:**

Plaintiff Alyssa Herrera ("Herrera" or "plaintiff") brings an action for ten causes of action for various violations of the Labor Code, and one cause of action for unfair competition, on behalf of herself and all aggrieved employees.

Defendants ASFC, LLC and Aspen Skilled Healthcare, Inc. (together "defendants") filed their initial Petition to Compel Arbitration on August 6, 2025. On November 26, 2025, this Court denied Defendants' original Petition to Enforce Class action Waiver and Compel Arbitration, without prejudice. (Holmes Decl., ¶ 3, Ex. A.) On December 19, 2025, Defendants' filed the instant renewed motion styled as an Amended Petition to Enforce Class Waiver, Compel Arbitration and Dismiss Claims, pursuant to the Federal Arbitration Act (9 U.S.C. section 1, et seq.).

The Court requires further briefing on the existence of an Arbitration Agreement, as the evidence currently before the court requires further explanation. "The general rule of motion practice ... is that new evidence is not permitted with reply papers ... [and] should only be allowed in the exceptional case ...." (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.) If the court exercises its discretion to allow new evidence in reply papers, the opposing party must be given an opportunity to respond. (*Alliant Ins. Services, Inc. v. Gaddy* (2008) 159 Cal.App.4th 1292, 1307-1308.)

Defendants argue that Herrera signed an Arbitration Agreement on July 19, 2023, and provide an Arbitration Agreement purportedly signed by Herrera on July 20, 2023. (Kwan Decl., Ex. A.) Defendants argue in their moving papers that the Arbitration Agreement signed by Herrera was signed on July 19, 2026, but was dated on July 20, 2026 based on the computer software defendants utilized:

(Defendants' Moving Papers, pgs. 14:24-15:4.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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